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September 28, 2026

The Honorable Marco Rubio
Secretary of State
U.S. Department of State
2201 C Street NW
Washington, D.C. 20520

Dear Secretary Rubio,

Recent developments in the Republic of Korea's (ROK) economic, technological, and diplomatic posture toward the People's Republic of China (PRC) pose significant risks for the United States. Testifying before the House Foreign Affairs Committee in June, you asserted that "[Republic of Korea] elected leaders are taking positions that run contrary to the national interests of the United States."¹ I write to detail concerns reinforcing your assessment and stand ready to work with you to address evolving ROK-PRC relations appropriately.

The U.S.-ROK alliance remains indispensable; that is precisely why the potential for frictions to develop into a structural shift in Seoul's alignment warrants close monitoring and, as necessary, concerted action. The pattern described below, including nine months of intensive leader-level engagement between Seoul and Beijing, deepening ROK semiconductor investment inside the PRC, and discriminatory treatment of American firms relative to their PRC-linked competitors in Korea demonstrates the need for heightened vigilance.

The pace of ROK-PRC leader-level engagement over the past nine months has no recent precedent. General Secretary Xi Jinping traveled to Gyeongju in November 2025, his first visit to the ROK in eleven years.² Two months later, President Lee Jae Myung made a four-day state visit to Beijing, the first by an ROK president since 2019, meeting Xi, Premier Li Qiang, and National People's Congress (NPC) Chairman Zhao Leji. President Lee publicly framed 2026 as the year of full restoration of the bilateral relationship and described the trajectory of the partnership as an irreversible trend.³ Fourteen memoranda of understanding were signed,

¹ HOUSE FOREIGN AFFAIRS COMMITTEE, *Department of State FY2027 Budget Request: A Commitment to America First Foreign Policy*, (June 2026), available at: <https://foreignaffairs.house.gov/committee-activity/hearings/department-of-state-fy-2027-budget-request-a-commitment-to-america-first-foreign-policy>

² THE KOREA HERALD, *Xi in S. Korea for 1st time in 11 years for talks with Trump, Lee*, (Oct 2025), available at: <https://www.koreaherald.com/article/10604852>

³ Scott Foster, ASIA TIMES, *Smiles all around at South Korea-China summit*, (Jan 2026), available at: <https://asiatimes.com/2026/01/smiles-all-around-at-south-korea-china-summit/#:~:text=This%20summit%20will%20serve%20as%20an%20important,nations%20have%20maintained%20friendly%20relations%20as%20neighbors.>

spanning trade, science and technology, the digital sector, intellectual property, and quarantine standards.⁴

Two particular features of this engagement merit the Administration's attention. First, General Secretary Xi's unusually explicit invocation of shared Chinese and Korean sacrifice against Japanese militarism eight decades ago is a transparent effort to drive a wedge between two U.S. treaty allies at precisely the moment Beijing-Tokyo relations have deteriorated over Taiwan.⁵ Second, Beijing has paired this engagement with a push to expand bilateral communication mechanisms on export controls and supply chains.⁶ Whatever their stated purpose, such channels create a parallel architecture to allied export control coordination, one in which the PRC obtains visibility into allied policy deliberations—all while China's critical mineral export controls are tantamount to an "economic declaration of war against the United States."⁷

This engagement is taking place against the backdrop of continued ROK technology and supply chain exposure to PRC coercion. The ROK's largest firms retain deep manufacturing exposure in the PRC. Samsung's NAND memory facility in Xi'an and SK Hynix's DRAM operations in Wuxi and NAND production in Dalian pose serious points of CCP leverage against allied global supply chains. The Administration's decision to end validated end-user status for those facilities on December 31, 2025, and its shift to annual, facility-specific licensing was the correct policy position.⁸ However, this has also created a recurring annual pressure point at which Seoul has a strong commercial incentive to seek accommodation with Beijing—one in which PRC authorities have a predictable opportunity to apply leverage that they are unlikely to waste.

Concerns over allied alignment on technology policy are being exacerbated by what appears to be biased enforcement of ROK law against U.S. companies in favor of PRC competitors. PRC-affiliated e-commerce platforms—principally AliExpress, whose parent company Alibaba Group is designated by the Pentagon as a Chinese military company, and Temu, previously investigated for forced labor risks—drew a combined monthly active user base of roughly 16.5 million Korean consumers in the first quarter of 2026, approaching the scale of the market leader.⁹

⁴ Yonhap, THE KOREA TIMES, *Korea, China sign 14 MOUs on Cooperation in Technology, Environment, Other Areas*, (Jan 2026), available at: <https://www.koreatimes.co.kr/foreignaffairs/20260105/korea-china-sign-14-mous-on-cooperation-in-technology-environment-other-areas>

⁵ XINHUA, *Xi holds talks with ROK President Lee Jae Myung*, (Jan 2026), available at: http://en.cppcc.gov.cn/2026-01/06/c_1153057.htm#:~:text=More%20than%2080%20years%20ago%2C%20the%20two,protect%20peace%20and%20stability%20in%20Northeast%20Asia.

⁶ Yonhap, THE KOREA TIMES, *Industry Ministers of S. Korea, China, Hold First Talks in 4 Years, Discuss Supply Chains*, (Mar 2026), available at: <https://www.koreatimes.co.kr/business/companies/20260318/industry-ministers-of-s-korea-china-hold-first-talks-in-4-years-discuss-supply-chains>

⁷ The Honorable John Moolenaar, Chairman, THE HOUSE SELECT COMMITTEE ON THE STRATEGIC COMPETITION BETWEEN THE UNITED STATES AND THE CHINESE COMMUNIST PARTY, (Oct 2025), available at: <https://chinaselectcommittee.house.gov/media/press-releases/moolenaar-china-s-rare-earth-restrictions-are-a-slap-in-the-face-to-president-trump>

⁸ BUREAU OF INDUSTRY AND SECURITY, *Department of Commerce Closes Export Controls Loophole for Foreign-Owned Semiconductor Fabs in China*, (Aug 2025), available at: <https://www.bis.gov/press-release/department-commerce-closes-export-controls-loophole-foreign-owned-semiconductor-fabs-china>

⁹ DEPARTMENT OF WAR, *Entities Identified as Chinese Military Companies Operating in the United States in Accordance with Section 1260H of the William M. (Mac) Thornberry National Defense Authorization Act for Fiscal Year 2021 (Public Law 116-283, Section 1260H, as amended (codified at 10 U.S.C. § 113, note))*, (June 2026), available at: <https://media.defense.gov/2026/Jun/08/2003945537/-1/-1/1/ENTITIES-IDENTIFIED-AS-CHINESE-MILITARY-COMPANIES-OPERATING-IN-THE-UNITED-STATES-IN-ACCORDANCE-WITH-SECTION->

Korean authorities have documented systemic problems with these platforms, including the transfer of Korean consumers' personal data to overseas sellers without required consent and dozens of unfair contract terms that channel consumer disputes into foreign courts.¹⁰ Yet the ROK's regulatory architecture has been slow in responding to these PRC-linked companies. For example, the Korea Fair Trade Commission's recently revised e-commerce enforcement decree took effect on July 21, 2026. Yet its requirement that qualifying foreign e-commerce platforms appoint a Korea-based domestic representative does not come into force for 12 months. Such an eased-in deadline stands in stark contrast to the immediate and repeated enforcement actions directed at U.S.-incorporated firms operating in Korea.¹¹

This regulatory disparity is even more stark when contrasting how Korean authorities handle severe security breaches involving Chinese entities against minor incidents at U.S. firms. In October 2025, an OTP security vulnerability on AliExpress enabled hackers to steal approximately \$6 million in settlement funds from Korean small-business sellers on the platform. Yet, despite the platform suppressing the breach for four months, Korean regulators conducted no facility raids and imposed no fines.¹² In another instance, children's toys, apparel, and accessories sold on PRC platforms like AliExpress and Temu have repeatedly tested positive for toxic lead, cadmium, and endocrine disruptors at hundreds of times legal safety limits.¹³ Yet, rather than subjecting these platforms to binding statutory oversight or enforcement, Korean authorities granted the platforms a non-binding agreement to self-police hazardous goods.¹⁴

In sharp contrast, when Coupang—an American firm—experienced a low-sensitivity data incident where no financial data or passwords were compromised or externally exfiltrated by a PRC national, eleven Korean regulatory agencies launched an aggressive, multi-front campaign. Ultimately conducting over 400 facility raids, issuing more than 4,400 document requests, and ultimately levying a staggering \$409 million in total penalties.¹⁵

1260H.PDF; No Kyung-min, THE KOREA HERALD, *AliExpress, Temu gain ground in Korea as sellers tap cross-border channels*, (Apr 2026), available at: <https://www.koreaherald.com/article/10723169>; THE HOUSE SELECT COMMITTEE ON THE STRATEGIC COMPETITION BETWEEN THE UNITED STATES AND THE CHINESE COMMUNIST PARTY, *Fast Fashion and the Uyghur Genocide: Interim Findings*, (June 2026), available at: <https://chinaselectcommittee.house.gov/media/press-releases/select-committee-releases-interim-findings-shein-temu-forced-labor>

¹⁰ THE KOREA TIMES, *Korean regulator orders AliExpress, Temu to change 'unfair' contract terms*, (Nov 2024), available at: <https://www.koreatimes.co.kr/southkorea/society/20241120/korean-regulator-directs-two-major-chinese-e-commerce-platform-aliexpress-and-temu-to-revise-unfair-contract-terms>

¹¹ The Honorable Jim Jordan, HOUSE JUDICIARY COMMITTEE, *CLOSED FOR COMPETITION: SOUTH KOREA'S DISCRIMINATORY ATTACKS ON AMERICAN-OWNED BUSINESSES*, (July 2026), available at: <https://judiciary.house.gov/sites/evo-subsites/republicans-judiciary.house.gov/files/evo-media-document/south-korea-discriminatory-enforcement-report-draft-final.pdf>

¹² Kim Ji-young, SEOUL ECONOMIC DAILY, *AliExpress Korea Hacked, Hackers Steal 8.6 Billion Won in Seller Payouts*, (Feb 2026), available at: <https://en.sedaily.com/finance/2026/01/20/aliexpress-korea-hacked-hackers-steal-86-billion-won-in>

¹³ THE STRAITS TIMES, *South Korea Finds High Levels of Toxins in Kids' Clothing Sold on Chinese E-commerce Sites*, (Nov 2024), available at: <https://www.straitstimes.com/asia/east-asia/south-korea-finds-excessive-levels-of-toxins-in-kids-clothing-sold-on-some-chinese-e-commerce-sites>

¹⁴ THE KOREA HERALD, *China's AliExpress, Temu Sign Rare Pact in Korea to Ensure Product Safety*, (May 2024), available at: <https://www.koreaherald.com/article/3392539>

¹⁵ Ibid. CLOSED FOR COMPETITION

We are concerned that the practical effect of ROK platform policy is to burden American companies while PRC platforms capture Korean consumer data and market share, and leverage the PRC's malign trade and forced labor practices with impunity to grow their presence in the economy of a major American ally.

This widening gulf is especially concerning in light of the 2026 National Defense Strategy's assessment that the ROK is capable of assuming primary responsibility for deterring North Korea and reorientation of U.S. Forces Korea (USFK) toward broader regional contingencies.¹⁶ Seoul has made progress on burden-sharing metrics, notably with a substantial 2026 defense budget increase and movement toward wartime operational control transfer, but has framed those steps publicly in terms of reduced reliance on the United States rather than expanded alliance contribution.¹⁷

Even more concerning is Seoul's posture toward regional contingencies. The February 2026 Yellow Sea air-defense identification episode produced public friction over notification and coordination and drew commentary in Korea criticizing USFK operations rather than PRC conduct.¹⁸ Seoul has effectively ruled out supporting a potential regional response to a Taiwan contingency triggered by PRC aggression, underscored by President Lee's blunt assertion: "[W]hat does it matter to us what happens in the Taiwan Strait?"¹⁹

Additionally, reports of ROK Unification Minister Chung's unauthorized disclosure of U.S. classified information in March 2026 reportedly necessitated adoption of new information-security measures by the U.S. Intelligence Community, including restrictions on certain North Korea-related intelligence sharing with the ROK.²⁰ President Lee nevertheless publicly criticized these necessary safeguards even as his administration has benefited from the Trump administration's cooperation on major political priorities that rely on trust and disciplined information security, including Seoul's pursuit of a nuclear-powered submarine program and the transition of wartime operational control.²¹

The U.S.–ROK alliance remains indispensable, and my interest is in strengthening it. But an alliance is sustained by candor, and allied divergence on important national interests is not a concern to take lightly. To inform the Select Committee's work to combat the PRC's threats and attempts to undermine the posture of the United States and its allies, I request that appropriate

¹⁶ DEPARTMENT OF WAR, *2026 National Defense Strategy*, (Jan 2026), available at:

<https://media.defense.gov/2026/Jan/23/2003864773/-1/-1/0/2026-national-defense-strategy.pdf>

¹⁷ Benjamin Howe, *South Korea to raise defence spending, pursue greater self-reliance*, DSEI GATEWAY, (Oct 2025), available at: <https://dsei-gateway.com/en/news/budget-investment/south-korea-to-raise-defence-spending-pursue-greater-self-reliance/>

¹⁸ ANADOLU, *South Korea lodges protest with US Forces Korea over rare US-China jets standoff*, (Feb 2026), available at: <https://www.aa.com.tr/en/asia-pacific/south-korea-lodges-protest-with-us-forces-korea-over-rare-us-china-jets-standoff/3836378>

¹⁹ Jung Min-kyung, *S. Korea's foreign policy challenges pulled into domestic politics*, THE KOREA HERALD, (Jan 2026), available at: <https://www.koreaherald.com/article/10648377>

²⁰ Jack Kim & Kyu-Seok Shim, *South Korea's Lee says claim that minister leaked classified intel is 'absurd'*, (April 2026), available at: <https://www.reuters.com/world/asia-pacific/south-koreas-lee-says-claim-that-minister-leaked-classified-intel-is-absurd-2026-04-21/>

²¹ Jack Kim & Kyu-Seok Shim, *South Korea's Lee says claim that minister leaked classified intel is 'absurd'*, (April 2026), available at: <https://www.reuters.com/world/asia-pacific/south-koreas-lee-says-claim-that-minister-leaked-classified-intel-is-absurd-2026-04-21/>

Department personnel provide a briefing on developments in ROK-PRC relations and the Administration's response by October 31.

Sincerely,



Rep. John Moolenaar
Chairman
Select Committee on China

cc: The Honorable Pete Hegseth, Secretary of War; The Honorable Howard Lutnick, Secretary of Commerce; The Honorable Jamieson Greer, United States Trade Representative